
Argument for the attorney.

Mr. Randall, plaintiff in error, in propria persona:

I. The plaintiff's office of attorney-at-law is property. And it has been variously declared by the courts to be a "license," a "privilege," a "franchise," a "freehold," a "right to practise law in courts," a "profession which is the high road to wealth and distinction."

The grant of the "office of attorney," at common law, is the grant of an office for the life, or during the good behavior, of the grantee.

In *Hurst's Case*,* a mandamus was granted to restore an attorney to his office, because, declares Lord Holt,

"He is an officer concerning the public justice, and is compellable to be attorney for any man, and has a *freehold* in his place."

In *Ex parte Garland*,† this court says:

"An attorney and counsellor being, by the solemn judicial act of the court, clothed with his office, does not hold it as a matter of grace and favor. The right which it confers upon him to appear for suitors, and to argue causes, is something more than a mere indulgence, revocable at the pleasure of the court, or at the command of the legislature. It is a right of which he can only be deprived by the judgment of the court, for moral or professional delinquency."

In *Ex parte Austin*,‡ Gibson, C. J., delivering the opinion of the Supreme Court of Pennsylvania, thus speaks:

"An attorney-at-law is an officer of the court, and his office is an office *for life*. The grant of an office without express limitation at common law being taken most strongly against the grantor, endures for the life of the grantee; and though the principle has not been applied to offices within the grant of the executive, it must necessarily be applied to the office of attorney. For, to subject the members of the profession to removal at the pleasure of the court, would leave them too small a share of the independence necessary to the duties they are called upon

* 1 Levinz, 75.

† 4 Wallace, 333.

‡ 5 Rawle, 194.